

Court No. - 36

Case :- WRIT - C No. - 5812 of 2010

Petitioner :- Ashok Kumar Gupta

Respondent :- State Of U.P. Thru Sec. M.D. U.P. Elec. Power And Others

Petitioner Counsel :- Mansoor Ahmad

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Prakash Krishna,J.

Hon'ble Yogesh Chandra Gupta,J.

Challenging the correctness of electricity bill creating a demand of Rs.2,02,736/-, present writ petition has been filed.

Ms. Mridula Tripathi, learned counsel for the contesting respondents, points out that the remedy of the petitioner is to invoke Clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner is relegated to the said remedy. She submits that the justice will be done to the petitioner by the Department.

The petitioner has already filed a representation dated 6.1.2010 (Annexure No.9 to the writ petition). The said representation may be treated as an application under the said clause. The authority concerned shall take appropriate decision in accordance with law preferably within a period of one month. For a period of six weeks, the recovery shall not be pressed against the petitioner.

With the aforesaid directions, the writ petition is disposed of.

Order Date :- 4.2.2010

NS